

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

7. AARON FREDERICK LUKIANOW V. CINDY ANN LUKIANOW

23FL0373

On March 2, 2026, Respondent filed a Request for Order (RFO) seeking attorney's fees, sanctions, and an order directing the clerk to sign the QDRO as elisor. She filed a compendium of exhibits, a proposed order, and her Income and Expense Declaration concurrently therewith. The RFO and Notice of Tentative Ruling were served on March 9th. The remaining documents were served on March 13th.

Petitioner filed and served his Responsive Declaration to Request for Order on May 1st.

On May 27th Respondent filed and served a Memorandum of Points and Authorities and an objection to Petitioner's declaration and exhibits.

Respondent asks that the clerk of the court be appointed as elisor to sign the Qualified Domestic Relations Order (QDRO) for Williams-Sonoma, Inc. 401(k) plan. She further requests sanctions in the amount of \$5,000 pursuant to Family Code § 271 and attorney's fees in the amount of \$6,765 pursuant to Family Code § 2030. Respondent objects to Petitioner's declaration as it is not in compliance with Civil Procedure § 2015.5 and is therefore, inadmissible. She further objects to the court's consideration of Petitioner's Exhibits A through S as they have not been properly authenticated.

Respondent's objection to the declaration is overruled. Page 2 of the FL-320 does certify under penalty of perjury that the information in "all attachments is true and correct." The court finds this meets the requirements of Civil Procedure § 2015.5 therefore the objection is overruled.

The objection to Petitioner's attachments is overruled. By signing the FL-320, Petitioner certified that each of the attachments are "true and correct" which the court interprets to mean they are true and correct copies of the documents they purport to be. As such, the objection is overruled.

Turning to the request for appointment of an elisor, the request is granted. The appointment of an elisor is authorized by the court's general authority to compel obedience to its orders as set forth in Civil Procedure § 128(4). The language of Section 128 has been interpreted to mean that judges can do what is necessary to "exercise reasonable control over litigation before [them]... to achieve justice and prevent misuse of processes lawfully issued." Venice Canals Resident Homeowners Assn. v. Superior Court (1977) 72

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Cal.App.3d 675, 679. Thus, the appointment of an elisor is merely a means of achieving justice for the parties before the court.

Here, the court ordered the parties to agree upon an actuary to draft the QDRO and thereafter “...promptly sign the QDRO once prepared.” Judgment ¶ 10, 11, June 30, 2025. The QDRO has since been prepared by the agreed upon actuary and the only thing left to do is sign. Petitioner has provided no legal basis to invalidate or amend the prepared QDRO, nor has he established any mistake of fact within the QDRO. Given Petitioner’s refusal to comply with the court’s order, the request for an elisor is granted. The clerk of court is authorized to act as elisor and sign the Qualified Domestic Relations Order for Williams-Sonoma, Inc. 401(k) Plan.

Turning to the request for attorney’s fees, the public policy of Family Code section 2030 is to provide “parity between spouses in their ability to obtain effective legal representation.” In Re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party’s rights. Alan S. v Superior Court, 172 Cal. App. 4th 238,251(2009). In the face of a request for attorney’s fees and costs, the court is to make findings on “whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties.” Fam. Code § 2030(a)(2).

Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. “In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party’s case adequately.” *Id.* at (b). Financial resources are only one factor to be considered though. *Id.* In addition to the parties’ financial resources, the court may consider the parties’ trial tactics. In Re Marriage Of Falcone & Fyke, 203 Cal. App. 4th 964; 975 (2012).

Trial tactics of a party are also to be considered in ruling on a request for sanctions pursuant to Family Code § 271 which states, in pertinent part, “...the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney’s fees and costs pursuant to this section is in the nature of a sanction.” Fam. Code § 271(a). While the purpose of Section 271 is to impose a

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punitive sanction, the court is not to impose a sanction that would create an “unreasonable financial burden on the party against whom the sanction is imposed.” *Id.*

In reviewing each party’s respective Income and Expense Declaration, there is clearly a disparity in income between the parties. The court further finds that Petitioner has the ability to pay the attorney’s fees and costs of both parties and that his unjustified refusal to sign the QDRO resulted in Respondent incurring significant attorney’s fees and costs associated with filing the present RFO. That said, the court is of the opinion that awarding attorney’s fees in the amount of \$6,750 and sanctions in the amount of \$5,000 would pose an unreasonable financial burden. Additionally, the court does not find \$6,750 to be a reasonable amount of fees incurred in relation to the present dispute. As such, the request for Section 271 sanctions is denied. The request for Section 2030 attorney’s fees is granted in the amount of \$4,905. Petitioner is to pay this amount directly to Respondent’s attorney. It may be paid in one lump sum or in monthly increments of \$408.75 commencing on June 15, 2026 and continuing on the 15th of each month until paid in full. If any payment is missed or late, the entire amount shall become immediately due and payable.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: RESPONDENT’S OBJECTION TO THE DECLARATION IS OVERRULED. THE OBJECTION TO PETITIONER’S ATTACHMENTS IS OVERRULED. THE CLERK OF COURT IS AUTHORIZED TO ACT AS ELISOR AND SIGN THE QUALIFIED DOMESTIC RELATIONS ORDER FOR WILLIAMS-SONOMA, INC. 401(K) PLAN.

THE REQUEST FOR SECTION 271 SANCTIONS IS DENIED. THE REQUEST FOR SECTION 2030 ATTORNEY’S FEES IS GRANTED IN THE AMOUNT OF \$4,905. PETITIONER IS TO PAY THIS AMOUNT DIRECTLY TO RESPONDENT’S ATTORNEY. IT MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$408.75 COMMENCING ON JUNE 15, 2026 AND CONTINUING ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL. IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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8. ASHLEY SAMADANI V. ANTHONY SAMADANI

PFL20200775

Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) on March 10, 2026. It was served by mail on April 15, 2026, it was also personally served the same day.

The parties are ordered to appear for the arraignment.

TENTATIVE RULING #8: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.

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